

NON-DISCLOSURE AGREEMENT

Mutual Confidentiality & Non-Disclosure

This Non-Disclosure Agreement (“**Agreement**”) is made on this the **[Day]** day of **[Month, Year]**.

BY AND BETWEEN

[Party 1 Legal Name], a company incorporated under the Companies Act, 2013, having its registered office at **[Party 1 Address]** (hereinafter referred to as “**Party 1**”, which expression shall, unless repugnant to the context, include its successors and permitted assigns) of the **ONE PART**;

AND

[Party 2 / Company Legal Name], a company incorporated under the Companies Act, 2013, having its registered office at **[Party 2 Address]** (hereinafter referred to as “**Company**”, which expression shall, unless repugnant to the context, include its representatives and permitted assigns) of the **OTHER PART**.

Party 1 and Company shall hereinafter be referred to collectively as “**Parties**” and individually as “**Party**”.

RECITALS

WHEREAS both Parties wish to pursue discussions for the purpose of entering into a potential business arrangement in relation to

[Please fill in details of proposed transaction] (“**Proposed Transaction**”) and shall use any Confidential Information solely for evaluating, negotiating, and, if applicable, implementing the Proposed Transaction;

AND WHEREAS the Parties may exchange certain information, material, and documents relating to each other’s business, assets, financial condition, operations, plans and/or prospects (hereinafter referred to as “**Confidential Information**”) that each Party regards as proprietary and confidential; and

AND WHEREAS each Party wishes to review such Confidential Information solely for the purpose of determining their mutual interest in engaging in the Proposed Transaction.

AGREEMENT

IN CONSIDERATION of the foregoing and the mutual covenants herein, the Parties agree as follows:

1. Definition of Confidential Information

“**Confidential and/or Proprietary Information**” means any information disclosed by one Party (the “**Disclosing Party**”) to the other (the “**Receiving Party**”), directly or indirectly, in writing, orally, or by inspection of tangible objects. This includes, without limitation, trade secrets, network information, configurations, trademarks, know-how, business and marketing plans, financial and operational data, and all other non-public information relating to the Disclosing Party’s current and/or future business. Confidential Information may also include information disclosed by third parties on the Disclosing Party’s behalf.

2. Permitted Use

The Receiving Party shall use the Confidential Information solely for evaluating, negotiating, and, if applicable, implementing the Proposed Transaction (the “**Permitted Purpose**”) and for no other purpose whatsoever. The Receiving Party shall not use the Confidential Information, directly or indirectly, for its own benefit or for the benefit of any third party, except as expressly permitted in writing by the Disclosing Party.

3. Non-Disclosure Obligations

The Receiving Party shall not disclose, reproduce, summarise, or distribute Confidential Information except in connection with the Proposed Transaction. The Receiving Party may share Confidential Information only with its employees and consultants on a strict need-to-know basis, provided that such persons are bound by written confidentiality obligations no less restrictive than those set out herein.

4. Standard of Care

Each Party shall protect the other’s Confidential Information using the same degree of care it uses to protect its own proprietary information of a similar nature, but in no event less than reasonable care. Each Party agrees to

take all reasonable measures at its own expense to restrain its representatives from any prohibited or unauthorised disclosure or use of Confidential Information.

5. Ownership & No Licence

Confidential Information shall at all times remain the exclusive property of the Disclosing Party. Nothing herein shall be construed as granting any licence or other rights (by implication, estoppel, or otherwise) in or to the Confidential Information, except the limited right to use such information for the Permitted Purpose.

6. Return or Destruction

Within seven (7) days of a written request by the Disclosing Party, the Receiving Party shall return or destroy (as directed) all originals, copies, reproductions, and summaries of Confidential Information. The Receiving Party shall certify such return or destruction in writing.

7. Exclusions from Confidential Information

Confidential Information shall not include information which the Receiving Party can demonstrate:

- (i) is or becomes publicly known other than through a breach of this Agreement or fault of the Receiving Party;
- (ii) was already in its possession free of any restriction prior to receipt from the Disclosing Party;
- (iii) was independently developed by the Receiving Party without use of the Confidential Information; or
- (iv) has been approved for release by written authorisation of the Disclosing Party.

8. Data Protection & Privacy

Where Confidential Information includes personal data or sensitive personal data, each Party shall comply with all applicable data protection and privacy laws, including the Digital Personal Data Protection Act, 2023, the Information Technology Act, 2000, and the IT (Reasonable Security Practices and Procedures and Sensitive Personal Data or Information) Rules, 2011, as amended from time to time.

The Receiving Party shall implement and maintain appropriate technical and organisational measures to protect such data against unauthorised or unlawful processing, accidental loss, destruction, damage, or disclosure, and shall promptly notify the Disclosing Party in writing of any actual or suspected data breach.

9. Compelled Disclosure

If a Party receives a summons or other legally compelled process requiring disclosure of Confidential Information, it shall promptly notify the Disclosing Party in writing. The Receiving Party may disclose only to the extent legally required and shall cooperate with the Disclosing Party, at the Disclosing Party's expense, to challenge or limit the scope of such disclosure.

10. No Use of Name or Marks

Neither Party shall use the other's name, trademarks, proprietary words, symbols, or any information disclosed under this Agreement in any publication, press release, marketing material, or otherwise without the prior written approval of the other Party.

11. Equitable Relief

Each Party acknowledges that a breach of this Agreement would cause the other Party irreparable harm for which monetary damages would be an inadequate remedy. Accordingly, each Party shall be entitled to seek immediate injunctive or other equitable relief from any court of competent jurisdiction, without the need to post any bond or prove special damages, in addition to any other rights and remedies available at law or in equity.

12. Indemnification

The Receiving Party shall indemnify and hold harmless the Disclosing Party from and against all costs, expenses, losses, and damages (including reasonable legal fees and court costs) arising out of or resulting from any violation of the provisions of this Agreement. The Parties acknowledge that monetary damages may not be an adequate remedy; the non-breaching Party shall be entitled to seek specific performance or other equitable relief in addition to monetary damages.

13. Limitation of Liability

Neither Party shall be liable for any special, consequential, incidental, or exemplary damages or loss (including lost profits or business opportunity) regardless of whether a Party was advised of the possibility of such damage. This limitation shall not apply to: (i) a Party's breach of its confidentiality obligations under this Agreement; (ii) any misuse or unauthorised disclosure of Confidential Information; or (iii) the Receiving Party's indemnity obligations under Clause 12.

14. No Obligation to Disclose

Nothing in this Agreement obligates either Party to disclose any Confidential Information. Each Party reserves the right, at its sole discretion, to disclose only such information as it deems necessary in relation to the Proposed Transaction.

15. Term & Termination

This Agreement shall become effective on the date of execution by both Parties and shall remain in force until the Proposed Transaction is discontinued by either Party upon thirty (30) days' prior written notice. The confidentiality and non-use obligations shall survive the expiry or termination of this Agreement for a period of five (5) years.

16. Non-Solicitation

During the term of this Agreement and for twelve (12) months after its expiry or termination, each Party agrees that, without the prior written consent of the other Party, it shall not:

- (a) directly or indirectly solicit for employment, engagement, or consultancy any employee, officer, key consultant, or contractor of the other Party with whom it had material dealings in connection with this Agreement;
- (b) induce or attempt to induce any such person to leave or alter their relationship with the other Party; or
- (c) directly or indirectly solicit, canvass, or induce any client, customer, or key business partner of the other Party to reduce, cease, or materially alter its business relationship with that Party.

This Clause shall not restrict either Party from responding to general job advertisements or engaging persons who independently approach them without prior solicitation in breach of this Clause.

17. Notices

All notices under this Agreement shall be in writing and deemed duly given when: (i) delivered by hand and acknowledged; (ii) sent by recognised courier with tracking, on the date shown as delivered; or (iii) sent by email to the addresses specified below, provided no delivery failure notice is received.

Party 1 — Name:	
Designation:	
Address:	
Email:	
Party 2 — Name:	
Designation:	
Address:	
Email:	

18. Entire Agreement & Amendments

This Agreement constitutes the entire agreement between the Parties regarding its subject matter and supersedes all prior discussions, understandings, and agreements, whether oral or written. No amendment or modification shall be effective unless made in writing and signed by authorised representatives of both Parties.

19. Governing Law & Dispute Resolution

This Agreement shall be governed by and construed in accordance with the laws of India. The Parties shall first attempt to resolve any dispute through good-faith discussions. If the dispute is not resolved within fifteen (15) days of written notice, it shall be finally settled by arbitration under the Arbitration and Conciliation Act, 1996 (as amended), before a sole arbitrator mutually appointed by the Parties. The seat and venue of arbitration shall be Nashik, Maharashtra, India.

20. General Provisions

- (a) Severability: If any provision is held invalid or unenforceable, the remaining provisions shall continue in full force and effect.
- (b) Waiver: No failure or delay in exercising any right shall constitute a waiver. Any waiver must be in writing.

- (c) Assignment: Neither Party may assign this Agreement without the prior written consent of the other Party.
- (d) Counterparts: This Agreement may be executed in counterparts, each of which shall constitute an original, and all of which together shall form one agreement.
- (e) Relationship: The Parties are independent contractors. Nothing herein creates a partnership, agency, employment, or joint venture relationship.

IN WITNESS WHEREOF

The Parties have caused this Agreement to be executed by their duly authorised representatives as of the date first written above.

PARTY 1	PARTY 2 (COMPANY)
Signature:	
Name:	
Designation:	
Place:	
Date:	

———— *End of Agreement* ————